

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs/Appellees,

vs.

MARC M. MOSZKOWSKI

Defendant/Appellant.

Case No.: 2018 CA 000543

Division: "E"

**MOTION TO DETERMINE INDIGENT STATUS AND WAIVE APPELLATE
FILING FEES**

*TO THE CLERK OF COURT: PLEASE HOLD THE FILING FEE
FOR THE CONCURRENTLY FILED NOTICE OF APPEAL
PENDING THE COURT'S RULING ON THIS MOTION.*

COMES NOW, Defendant/Appellant, Marc Moszkowski, and, pursuant to Fla. R. App. P. 9.430 and §§ 57.081, 57.082, Fla. Stat., moves for a determination of civil indigency and waiver of all appellate filing fees and related clerk service charges. In support, Appellant states:

1. Appellant is concurrently filing a Notice of Appeal in the above-styled matter.
2. Appellant is indigent and cannot pay the filing fees and costs associated with this appeal.
3. Appellant has completed the attached "**APPLICATION FOR**

DETERMINATION OF CIVIL INDIGENT STATUS", which is incorporated by reference and provides a full financial disclosure under penalty of perjury as required by law.

WHEREFORE, Appellant respectfully requests that the Clerk of the Circuit Court: (a) accept the concurrently filed Notice of Appeal without prepayment; (b) determine Appellant indigent under § 57.082 based on the attached Application; and (c) upon a finding of indigency, waive all appellate filing fees and clerk service charges under § 57.081(1) and transmit the notice/record to the First District Court of Appeal in the ordinary course. Alternatively, should the Clerk decline to grant indigent status, Appellant requests that the Court enter an order deeming Appellant indigent and directing the same relief. Any supplemental financial materials, if required, should be filed under seal and limited to indigency and stay/security issues.

Respectfully submitted this 27th day of October, 2025

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

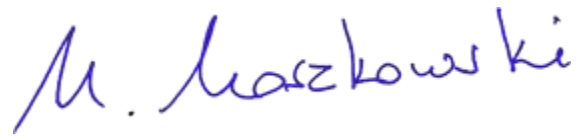
83300 Châteaudouble, France



DECLARATION

I declare under penalty of perjury under the laws of the State of Florida that the foregoing is true and correct, pursuant to Florida Statute § 92.525(2).

Executed on this 27th day of October, 2025.



CERTIFICATE OF SERVICE

I hereby certify that, on this 27th day of October, 2025, pursuant to Fla. R. Gen. Prac. & Jud. Admin. 2.516 and Fla. R. App. P. 9.420, a copy of the foregoing was served via the Florida Courts E-Filing Portal on all counsel of record at their designated service email addresses, including braden@lawpensacola.com



IN THE CIRCUIT/COUNTY COURT OF THE FIRST JUDICIAL CIRCUIT
IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. et al
Plaintiff/Petitioner or In the Interest of
vs.
MARC M. MOSZKOWSKI
Defendant/Respondent

CASE NO. 2018 CA 000543

APPLICATION FOR DETERMINATION OF CIVIL INDIGENT STATUS

Notice to Applicant: If you qualify for civil indigence, the filing and summons fees are waived; other costs and fees are not waived.

1. I have 0 dependents. (Include only those persons you list on your U.S. Income tax return.)

Are you Married?...Yes...No Does your Spouse Work?...Yes...No Annual Spouse Income? \$ _____

2. I have a net income of \$ 0 paid () weekly () every two weeks () semi-monthly () monthly () yearly () other _____.
(Net income is your total income including salary, wages, bonuses, commissions, allowances, overtime, tips and similar payments, minus deductions required by law and other court-ordered payments such as child support.)

3. I have other income paid () weekly () every two weeks () semi-monthly (x) monthly () yearly () other _____.
(Circle "Yes" and fill in the amount if you have this kind of income, otherwise circle "No")

Second Job	Yes \$ _____	<u>No</u>	Veterans' benefits	Yes \$ _____	<u>No</u>
Social Security benefits			Workers compensation	Yes \$ _____	<u>No</u>
For you	Yes \$ _____	<u>No</u>	Income from absent family members	Yes \$ _____	<u>No</u>
For child(ren)	Yes \$ _____	<u>No</u>	Stocks/bonds	Yes \$ _____	<u>No</u>
Unemployment compensation	Yes \$ _____	<u>No</u>	Rental income	Yes \$ _____	<u>No</u>
Union payments	Yes \$ _____	<u>No</u>	Dividends or interest	Yes \$ _____	<u>No</u>
Retirement/pensions	<u>Yes</u> \$ 1,020 (874€)	<u>No</u>	Other kinds of income not on the list	Yes \$ _____	<u>No</u>
Trusts	Yes \$ _____	<u>No</u>	Gifts	Yes \$ _____	<u>No</u>

I understand that I will be required to make payments for costs to the clerk in accordance with §57.082(5), Florida Statutes, as provided by law, although I may agree to pay more if I choose to do so.

4. I have other assets: (Circle "yes" and fill in the value of the property, otherwise circle "No")

Cash	Yes \$ _____	<u>No</u>	Savings account	Yes \$ _____	<u>No</u>
Bank account(s)	<u>Yes</u> \$ 100	<u>No</u>	Stocks/bonds	Yes \$ _____	<u>No</u>
Certificates of deposit or			Homestead Real Property*	Yes \$ _____	<u>No</u>
Money market accounts	Yes \$ _____	<u>No</u>	Motor Vehicle*	Yes \$ _____	<u>No</u>
Boats*	Yes \$ _____	<u>No</u>	Non-homestead real property/real estate*	<u>Yes</u> \$ 0 net	<u>No</u> See footnote
			Other assets*	Yes \$ _____	<u>No</u>

Check one: I () DO (x) DO NOT expect to receive more assets in the near future. The asset is _____.

5. I have total liabilities and debts of \$ >1,500,000 as follows: Motor Vehicle \$ 0, Home \$ 13,000 (tax), Boat \$ 0, Non-homestead Real Property \$ 0, Child Support paid direct \$ 0, Credit Cards \$ 350, Medical Bills \$ 0, Cost of medicines (monthly) \$ 0, Other \$ as per Final Judgment

6. I have a private lawyer in this case Yes No

A person who knowingly provides false information to the clerk or the court in seeking a determination of indigent status under s. 57.082, F.S. commits a misdemeanor of the first degree, punishable as provided in s. 775.082, F.S. or s. 775.083, F.S. I attest that the information I have provided on this application is true and accurate to the best of my knowledge.

Signed on OCTOBER 27, 2025.
1954 8831
Year of Birth Last 4 digits of Driver License or ID Number
Email address: m.moszkowski@yahoo.com
2080 chemin du Verdos, 83300 Chateaudouble, France
Address: Street, City, State, Zip Code

M. Moszkowski
Signature of Applicant for Indigent Status
Print Full Legal Name MARC MOSZKOWSKI
Phone Number/s: (251) 300 4820

This form was completed with the assistance of: _____
Clerk/Deputy Clerk/Other authorized person.

CLERK'S DETERMINATION

Based on the information in this Application, I have determined the applicant to be () Indigent () Not Indigent, according to s. 57.082, F.S.

Dated on _____, 20 ____.

Clerk of the Circuit Court
By _____, Deputy Clerk

APPLICANTS FOUND NOT TO BE INDIGENT MAY SEEK REVIEW BY A JUDGE BY ASKING FOR A HEARING TIME. THERE IS NO FEE FOR THIS REVIEW.

Sign here if you want the judge to review the clerk's decision _____

Footnote: real estate to be sold in connection with a seizure by one of Plaintiff's shareholders; the entire lump-sum will be paid directly to the lienholder by the Public Officer. I will receive no proceeds (€0 net equity).